

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
THURSDAY, JULY 09, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**CAPITAL ONE v REBECCA HARRIS
Case No. CL25-05722**

Motion for Reconsideration

TENTATIVE RULING:

Defendant's motion for reconsideration is DENIED.

A motion for reconsideration must be based on new or different facts, circumstances or law. (Code of Civil Procedure § 1008.) As to new or different facts, a motion for reconsideration must be based on newly discovered evidence which the moving party could not, with reasonable diligence, have discovered or produced. A party cannot simply relitigate a motion that was previously denied.

Defendant does not raise new or different facts that were not raised previously. Plaintiff's new motion confirms she had actual notice of the claimed debt and she confirms she reached out to the attorneys' office on August 11, 2025. Her underlying motion to vacate the judgment was based solely on the absence of actual notice.

Although Defendant may have been unaware of the court's tentative ruling system, she was provided a physical copy of the tentative ruling on the morning of the hearing and the case was passed in order for her to review the ruling. Defendant left the court without returning and was not present when her case was recalled at the end of the calendar.

MONTEZUMA LODGE NO. 172, I.O.O.F. OF CALIFORNIA v. LEWIS, et al.
Case No. CU23-05966

- (1) Motion by Plaintiff to Withdraw Admissions;
- (2) Continued Hearing on Defendant's Motion for Judgment on the Pleadings

TENTATIVE RULING

After a motion deeming request admissions admitted has been granted, the party against whom that order has been granted can by noticed motion seek an order from the court to withdraw the admission. C.C.P. §2033.300 requires a showing of "mistake, inadvertence, or excusable neglect", and that the other side "will not be substantially prejudiced in maintaining that party's . . . defense on the merits."

While this statute could be read to allow only actual admissions, and not deemed admissions, withdrawn, it has been applied to allow deemed admissions withdrawn. Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2026) §8:1386b, p. 30, citing *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 979.

The "mistake, inadvertence or excusable neglect" factor is subject to the same standard as a C.C.P. §473(b) motion for relief from default (but not the mandatory attorney affidavit of fault basis for relief from default). Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2026) §8:1386.2, p. 30.

The Court in Wilcox justified the granting of relief from the deemed admissions as discouraging the use of gamesmanship in discovery and avoiding providing an "undeserved windfall" of admissions that gut a party's case if there are circumstances that can excuse that party's failure to provide responses to admissions requests.

Parties often propound requests for admission covering the ultimate facts of the case that, if admitted, are outcome determinative. The propounding party who gets "lucky" and receives no response then notices a motion for a deemed admitted order that, at a minimum, results in the award of monetary sanctions. If the propounding party does not receive a response by the hearing, then, under Courtesy Claims and St. Paul, he "hits the jackpot" and "wins" an irrevocable deemed admitted order disposing of the lawsuit. By permitting relief under subdivision (m), we eliminate such undeserved windfalls and the resulting subversion of the policy favoring the resolution of lawsuits on the merits. (See *Elston v. City of Turlock*, *supra*, 38 Cal. 3d at p. 235.) Wilcox, *supra*, 21 Cal.4th at 982-983.

The Court noted that monetary sanctions should provide sufficient incentive for a responding party to serve responses to admissions, even if belatedly.

Permitting the withdrawal or amendment of deemed admissions is also consonant with the legislative desire to encourage actual responses. Although

precluding such relief does create more incentive for a response, the mandatory imposition of monetary sanctions under subdivision (k) already provides "sufficient incentive for the party to whom the request is directed to comply with the requirements of this discovery method." (Reporter's Notes, § 2033, subd. (k), in 2 Hogan & Weber, *supra*, appen. C, at p. 447.) In any event, the specter of sanctions under subdivision (m) should supply any additional incentive necessary to ensure a response. Precluding the withdrawal or amendment of deemed admissions, therefore, amounts to overkill. Id. at 980.

Close calls on motions to withdraw deemed admissions should be made in favor of granting them, not denying them.

The trial court's discretion in ruling on a motion to withdraw or amend an admission is not unlimited, but must be exercised in conformity with the spirit of the law and in a manner that serves the interests of justice. Because the law strongly favors trial and disposition on the merits, any doubts in applying section 2033.300 must be resolved in favor of the party seeking relief. Accordingly, the court's discretion to deny a motion under the statute is limited to circumstances where it is clear that the mistake, inadvertence, or neglect was inexcusable, or where it is clear that the withdrawal or amendment would substantially prejudice the party who obtained the admission in maintaining that party's action or defense on the merits. New Albertsons, Inc. v. Superior Court (2008) 168 Cal.App.4th 1403, 1420-1421.

If there was unremediable prejudice resulting from this delay in filing this motion, that could serve as a sufficient basis for denying this motion.

C.C.P. §2033.300(c) gives the court discretion in granting a motion for relief from admissions to impose conditions on it, "including but not limited to" authorizing the other side to conduct additional discovery, with the party granted relief required to pay the costs of that additional discovery.

This broad discretion includes the court's ability to condition relief on payment of the reasonable attorneys fees and costs incurred in the preparation and filing of the motion for judgment on the pleadings, which was based on those deemed admissions, and which might not have been filed had Plaintiff earlier filed this motion for relief from admissions.

The court shares Defendant's frustration with Plaintiff and Plaintiff's counsel's repeated failure to timely and appropriately prosecute this action. This is the second time the court has granted relief which should not have been necessary. There will not be a third. The court will find in the future that monetary sanctions are insufficient to cure Plaintiff's failure to prosecute as required by law should this continued conduct occur. However, the law prefers a decision on the merits. Denial of the motion to withdraw effectively creates a terminating sanction which is disfavored by the law. The court therefore grants Plaintiff's motion to withdraw the deemed admissions, conditioned

expressly on Plaintiff paying the reasonable fees and costs Defendant incurred in preparing and filing the motion for judgment on the pleadings.

The matter of attorneys fees and costs is continued to August 13, 2026 at 8:30. Defendant's counsel to file a declaration describing the fees and costs incurred by July 27, 2026. Any opposition to the fees and costs (which will be reviewed critically) shall be filed by August 3, 2026. If the parties meet and confer and resolve the fees and costs, Plaintiff will prepare a stipulation and order vacating the follow up hearing. Plaintiff shall have 30 days to pay those fees and costs, or this order withdrawing the deemed admissions will be vacated, and Defendant's motion for judgment on the pleadings reset for hearing on an expedited basis.

With this ruling, the court takes Defendant's motion for judgment on the pleadings off calendar, as moot at present.

ERIONA BOLER VS. DR. JEFFREY A. SALADIN COMPANY, INC.
Case No. CU24-09674

Plaintiff's Motion for Approval of PAGA Settlement

Tentative Ruling:

Parties to appear.

TARA CRUZ v. CARVANA, LLC et al.
Case No. CU25-05498

Plaintiff's Motion to Lift Stay

TENTATIVE RULING

Plaintiff TARA CRUZ moves to lift the stay ordered in this case on January 21, 2026 in conjunction with this court's order that her claims against Defendants CARVANA, LLC, BRIDGECREST ACCEPTANCE CORPORATION, and DEVELOPERS SURETY & INDEMNITY COMPANY (together "Respondents") be sent to arbitration pursuant to an arbitration agreement between the parties. Plaintiff contends that Respondents failed to timely pay arbitration initiation fees.

Forfeiture of Arbitration for Nonpayment of Fees. Code of Civil Procedure section 1281.97 states that in situations where the party that drafted an arbitration agreement is required to pay fees to initiate arbitration that party forfeits its right to arbitration if said initiation fees are not paid within thirty days of their due date. Likewise, Code of Civil Procedure section 1281.98 states that a drafting party required to pay fees that arise during the pendency of an arbitration forfeits its right to continued arbitration if said continuation fees are not paid within thirty days of their due date. The parties here do not contest that Respondents were required to pay initiation fees under the arbitration agreement with Plaintiff and failed to timely pay the fees for the arbitration Plaintiff

initiated. *Hohenshelt v. Superior Court* (2025) 18 Cal.5th 310 (*Hohenshelt*) holds that a drafting party does not necessarily forfeit its right to arbitration when it does not timely pay initiation or continuation fees. Sections 1281.97 and 1281.98 are not to be rigidly construed but rather only apply to invalidate the right to arbitration where the failure to pay fees is willful, grossly negligent, or fraudulent. (*Id.* at p. 323.) Nonpayment due to good faith mistake, inadvertence, or excusable neglect is not the sort of strategic nonpayment the statutes are meant to combat. (*Ibid.*)

Hohenshelt excuses Respondents here. Arbitrator AAA sent Respondents' counsel an invoice for arbitration initiation fees on March 3, 2026 stating a payment due date of April 2, 2026. (Declaration of Tara Cruz in Support of Motion Lift Stay at ¶ 8, Exhibit C.) Respondents' counsel did not notice the invoice because it went to their junk mail folder. (Declaration of Hannah Makinde in Support of Opposition to Motion to Lift Stay at ¶ 4.) Respondent discovered the arbitration file was closed when it received AAA's notice of case closure, which for some reason did not go to the junk mail folder. (*Ibid.*) Respondent immediately offered to pay the fee, though AAA refused to accept it because Plaintiff did not consent to reopening the arbitration. (*Id.* at ¶¶ 5-7, Exhibit C.)

Respondents' error was excusable neglect. Further, section 1281.97, subdivision (a)(1) states that a drafting party is only in material breach of an arbitration agreement where it fails to pay initiation fees within thirty days of the fee due date. AAA gave Respondents a due date of April 2, 2026. Respondents' offer to pay the fees on April 13, 2026 would, if accepted, have resulted in payment of the fees within thirty days of the due date. There was no material breach in the meaning of section 1281.97 here.

Conclusion. Plaintiff's motion to lift the stay is denied. Plaintiff is to contact AAA to reinitiate arbitration.

MARTINEZ, ET AL. v. COUNTY OF SOLANO, ET AL.
Case No. CU25-05652

Demurrer to FAC

TENTATIVE RULING

Defendant County of Solano's demurrer to Plaintiffs' first amended complaint is overruled in part and sustained without leave to amend in part.

The demurrer to Plaintiffs' first cause of action for negligence per se, second cause of action for "negligent failure to warn", and fourth cause of action for loss of consortium is overruled.

There is no common law tort liability for public entities. (*Torres v. Dep't of Corr. & Rehab.* (2013) 217 Cal.App.4th 844, 850.) Unless otherwise provided by statute, "[a] public entity is not liable for any injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person." (Gov. Code § 815(a).) Therefore, all government tort liability must be based on statute. (*Hoff v.*

Vacaville Unified Sch. Dist. (1998) 19 Cal.4th 925, 932; *Auth. for Cal. Cities Excess Liab. v. City of Los Altos* (2006) 136 Cal.App.4th 1207, 1212; *Luefer v. State of Cal.* (2002) 94 Cal.App.4th 1285, 1300.) Tort liability must be based on a specific statute either making a public entity liable for its conduct or creating some specific duty of care, and may not be based on the general tort provisions of Civil Code section 1714. (*Eastburn v. Reg'l Fire Prot. Auth.* (2003) 31 Cal.4th 1175, 1183.)

Both the first two causes of action are based on the statutory duties imposed by Food and Agricultural Code section 30503.5(b). This statute requires an animal shelter to, prior to “selling, giving away, or otherwise releasing” a dog known to the shelter to have bitten a person and broken that person’s skin, both disclose in writing the dog’s known bite history “to the person to whom the dog is sold, given away, or transferred” and to obtain a signed acknowledgment from “the person to whom the dog is sold, given away, or transferred” that the person was provided the written disclosure. The “documentation and disclosure requirements are for the purpose of public safety and the appropriate placement of dogs.” (Food & Agric. Code § 30503.5(c).)

Considering the stated purpose of the statute and the plain meaning of the language employed, the court concludes that the statute was intended by the legislature to mean that the shelter has a duty to provide a written disclosure to the person to whom the shelter has “released” or “transferred” a qualifying dog known to have bitten a person and broken skin. The interests of public safety and the appropriate placement of dogs are not served by requiring a shelter to disclose to the new legal owner of a potentially dangerous dog rather than the person to whom possession is given when the two are not the same person.

Plaintiffs have adequately alleged that Defendant had knowledge that the dog bit an employee of Defendant and inflicted “severe” injuries prior to releasing the dog to Plaintiffs. (FAC, ¶ 16.) Plaintiffs alleged that Defendant did not provide them written disclosure of this bite history and did not obtain Plaintiffs’ signed acknowledgment that they received the disclosure prior to releasing the dog to them. (*Id.* at ¶ 27.) Because these causes of action survive, Plaintiffs’ loss of consortium claim also survives.

Defendant’s claimed immunities pursuant to Government Code section 820.2 and 820.8 do not apply. While the decision to release the dog to Plaintiffs may have been discretionary, the failures to provide written disclosure and to obtain a signed acknowledgment of receipt of the disclosure were not. And, the allegations of the first amended complaint do not attempt to impose any liability on Defendant for the acts of third parties. Lastly, the duty of Defendant to release a dog to an animal rescue upon request does not conflict with the duty to provide disclosure and obtain acknowledgment when releasing the dog if Defendant knows the dog has bitten a person and broken skin prior to release.

Defendant’s demurrer to the third cause of action for “negligent failure to evaluate” and the fifth cause of action for “strict liability” is sustained without leave to amend.

Plaintiffs have not pleaded any statutory basis for imposing any duty or liability on Defendant County of Solano, a public entity, for its failure to “evaluate” the dog for dangerousness or transferability. The only statute identified in the first amended complaint is Food and Agricultural Code section 31603, which merely defines the term “vicious dog” without imposing any duty on shelters to evaluate dogs for being vicious.

As for the fifth cause of action for “strict liability”, Civil Code section 3342 imposes liability on the **owner** of a dog for the damages suffered by any person bitten by that dog while in a public place or lawfully in a private place regardless of the owner’s knowledge of the viciousness of the dog. While the liability may be imposed on a “keeper” of a dog if the keeper has prior knowledge of the vicious propensities of the dog, a “keeper” is someone who “harbors” or undertakes to control the actions of a dog. (*Buffington v. Nicholson* (1947) 78 Cal.App.2d 37, 41-42.) Plaintiffs alleged both that Defendant was not the owner of the dog (FAC, ¶ 12) and that Defendant relinquished possession and control of the dog to Plaintiffs (*id.* at ¶¶ 15, 18). Once possession was turned over to Plaintiffs, Plaintiffs became the keepers of the dog. Plaintiffs alleged that the attack occurred 15 minutes after they returned home, after Defendant ceased harboring or undertaking to control the actions of the dog.

Plaintiffs have made no attempt to meet their burden of showing “in what manner [they] can amend [these causes of action] and how that amendment will change the legal effect of [the] pleading.” (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *Cooper v. Equity Gen. Ins.* (1990) 219 Cal.App.3d 1252, 1263-1264; *McMartin v. Childrens’ Inst. Int’l* (1989) 212 Cal.App.3d 1393, 1408.)

COLEMAN v. SELECT PORTFOLIO SERVICING, INC., ET AL.
Case No. CU26-00897

Motion for Leave to File First Amended Complaint

TENTATIVE RULING

Plaintiff’s motion for leave to file first amended complaint is DENIED.

The motion suffers from a myriad of procedural defects.

The motion does not include a copy of the proposed amended pleading. (Cal. Rules of Court, rule 3.1324(a)(1).) It does not state what allegations are proposed to be deleted from the prior pleading by page, paragraph, and line number. (Cal. Rules of Court, rule 3.1324(a)(2).) It does not state what allegations are proposed to be added to the prior pleading by page, paragraph, and line number. (Cal. Rules of Court, rule 3.1324(a)(3).) The accompanying declaration does not state the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, or why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324(b).)

Additionally, Plaintiff has not filed a proof of service demonstrating proper and timely service of the motion papers on all appearing defendants. All moving and supporting papers must be served at least 16 court days prior to the hearing. (Code Civ. Proc. § 1005(b).) All defendants that have appeared are entitled to notice of all subsequent proceedings of which notice is required to be given. (Code Civ. Proc. § 1014.) Proof of service had to be filed no later than five court days prior to the hearing. (Cal. Rules of Court, rule 3.1300(c).)

The court confirms the July 15, 2026, hearing on Wells Fargo's demurrer.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645

Passcode: 675002